

STANDING ORDER NO. 339/2008

RELEASE OF VEHICLES BELONGING TO ACCIDENTS VICTIMS

While disposing off CrI. WP No. 1476/2007, Arun Handa vs Govt. of NCT of Delhi & Ors., the Hon'ble High Court of Delhi has observed on 10.1.2008 that the petitioner was the victim of an accident while he was coming on his motorcycle and a bus overtaking the petitioner from the left, squeezed the petitioner between road divider and its body. The petitioner was saved but his motorcycle suffered damages. Subsequently, a FIR was registered at PS Sarojini Nagar, the motorcycle of the petitioner was seized; he was told to get it released from the court of Ld. MM.

As the motorcycle of the petitioner was kept at Police Station for several days, he filed the aforesaid Criminal Writ Petition with the prayer that, where a victim of accident reports to the police about being hit by a bus and damage caused to his motorcycle, the same should be released to him after completing all formalities and furnishing a surety bond for producing the motorcycle before the trial court as and when required. The Hon'ble court observed that in all accident cases, the police should release the vehicle of the victim on executing a surety bond that he/she shall produce the same in the court as and when required and shall not dispose of the vehicle till the case is over. The police can give directions to the victim that he should execute a similar bond before the court when the challan is filed. The Hon'ble Court has observed that if an accused in case u/s 279/337/338 or even 304-A can be released by the police on bail, then why cannot the vehicle of a complainant be released on the basis of surety given by him. The court underscored that there has to be a different treatment given to the accused and the victim. A victim cannot be treated in the category of an accused.

In view of above, all ACsP/SHOs are directed that the vehicles of the victims/ complainants seized by the police as case property, may be released to the owner on furnishing a surety bond after completing necessary investigation such as getting the vehicle photographed, mechanical inspection etc. All concerned should ensure compliance of the above mentioned orders of the Hon'ble High Court. These instructions must be explained to all the IOs immediately. Vehicles belonging to victims in accidents cases of the past lying in police stations may be released at the earliest after taking action as mentioned above.



(Yudhbir Singh Dadwal)
Commissioner of Police
Delhi